

hour. Sanctions will be imposed against Defendant in the amount of \$700.00.

Plaintiffs' Motion is **GRANTED**. Defendant Whitney Environmental Consulting, Inc. is ordered to provide verified discovery responses within fifteen (15) days of Notice of Entry of Order. Objections are waived. Plaintiffs are awarded \$700.00 in monetary sanctions, payable by Defendant within 30 days of Notice of Entry of Order. A proposed order has been lodged and will be modified to reflect the Court's ruling.

SHANNON VS. FCA US, LLC, ET AL.

CASE NUMBER: 25CV-0207315

Tentative Ruling on Motion to Compel Deposition: Defendant FCA US LLC and Steward Chrysler Dodge Jeep Ram dba Stewart Dealerships move for an order compelling Plaintiff Nicole Shannon to appear for and proceed with her deposition and to produce the documents described in the deposition notice. The Motion is properly noticed and is unopposed. CCP 2025.450(a) provides:

If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.

Here, Defendant has established proper service of a deposition notice to Plaintiff on June 11, 2026. No objections were served. Defendant has also established that on the noticed date, June 23, 2026, Plaintiff did not appear for the deposition and did not produce any documents. Defendant is entitled to the relief requested.

Sanctions are mandatory under CCP 2025.450(g)(1). A reasonable hourly rate is determined by the prevailing rate charged to attorneys of similar skill and experience in the relevant community. See *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095. Plaintiff requests sanctions of Defendant requests sanctions of \$3,275.10 consisting of 5.8 attorney hours at \$450 per hour, plus costs of \$60 for the filing fee and \$605.10 for the court reporter. This hourly rate is higher than the prevailing rate for attorneys of similar skill and experience in Shasta County. No evidence has been submitted that competent local counsel could not be retained. Therefore, the Court will award attorney fees at a rate of \$400 per hour. Hours will be reduced by 2, because no opposition was filed and no reply brief was needed. The costs will be awarded. Total sanctions are \$2,185.10.

The Motion to Compel is **GRANTED**. Sanctions of \$2,185.10 are imposed in favor of Defendants against Plaintiff. A proposed order has been lodged and will be modified.

SHANNON VS. FCA US, LLC, ET AL.

CASE NUMBER: 25CV-0207315

Tentative Ruling on Motion to Compel Initial Disclosures and for Sanctions: Plaintiff Nicole Shannon moves for an order compelling Defendant FCA US LLC to produce all documents required under Code of Civil Procedure section 871.26(h). Plaintiff also seeks sanctions of

\$2,500.00 pursuant to CCP § 871.26(j)(1). Plaintiff's Notice of Motion indicates that "Plaintiffs Nicole Shannon and Giovanna Bonds" move for such an order. However, the Court has no record of Giovanna Bonds as a Plaintiff in this action. Accordingly, this ruling concerns only the current active Plaintiff in this matter, which is Nicole Shannon. The Motion is unopposed.

This lemon law case arises from Plaintiffs' purchase of a 2018 Jeep Grand Cherokee, which Plaintiff alleges FCA failed to repair within a reasonable number of attempts. This case was filed on March 20, 2025 and is subject to the newly enacted procedural framework under Code of Civil Procedure sections 871.20 through 871.30.

CCP § 871.26(b) provides that within 60 days after the filing of the answer or other responsive pleading, all parties shall, without awaiting a discovery request, provide to all other parties an initial disclosure and documents pursuant to subdivisions (f), (g), and (h).

Defendants filed their Answer on January 20, 2026 (the moving papers incorrectly state that the Answer was filed on January 16, 2026). Pursuant to CCP § 871.26(b), this established a deadline of March 22, 2026 for initial disclosures. Plaintiff's Motion alleges that FCA "has not provided verified responses, has not disclosed its search methodology, and has not supplemented its production in any meaningful way." (Mot. 6:2-4.) Plaintiff neglects to inform the Court when initial disclosures were received, but it can be inferred that they were timely served as Plaintiff argues only that FCA is in "material noncompliance," by failing to provide verifications or supplemental responses.

Plaintiff requests an order compelling Plaintiff to serve verifications. CCP § 871.26 does not require verifications. Plaintiff also requests an order compelling supplemental production of various documents including a "DealerCONNECT" record, "AutoPay claims and Trouble Not Found diagnostic claims," and "warranty claims paid under the 08-19-XX-40 module reset LOP series." In addition, Plaintiff seeks an order compelling verifications for various categories of documents for which some production has apparently already been made, including TSBs, recalls, and service manuals. Plaintiff further seeks an order requiring that Defendant disclose the search methodology and custodians consulted in conducting the search. Simply put, none of the requests listed above are part of the initial disclosures required by CCP § 871.26(h). That section sets forth a detailed list of what a defendant or manufacturer must provide within 60 days of filing its answer. On this record, it appears that Defendant has complied.

The Motion is **DENIED**. The proposed order will be modified accordingly.

9:00 a.m. Review Hearings

ALVAREZ- HERNANDEZ VS. MENLOVE, ET AL.

CASE NUMBER: 25CV-0207463

This matter is on calendar for status of service on Defendant Menlove. On April 24, 2026, the Court granted an order to serve Defendant Menlove by publication. No proof of service by publication has been filed. An appearance is necessary on today's calendar to provide a status of service.